



**CITY COMMISSION MEETING HAINES CITY, FLORIDA**

**MINUTES**

**September 5, 2024, 7:00 p.m.**

**City Hall Commission Chambers**

**620 E. Main Street, Haines City, FL 33844**

**Phone: 863-421-9921 Web: [hainescity.com](http://hainescity.com)**

Present: Commissioner, Anne Huffman  
Commissioner Morris West  
Vice-Mayor, Omar Arroyo  
Commissioner, Vernel Smith  
Commissioner, Kim Downing

Staff in Attendance: City Manager, James Elensky  
City Attorney, Fred Reilly  
City Clerk, Sharon Lauther

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**1. CALL TO ORDER**

Mayor Arroyo called the City Commission Meeting to order at 7:04 AM on Thursday, September 5, 2024 in the City Commission Chambers, located at 620 E Main Street, Haines City, FL.

**2. INVOCATION**

Pastor Alex Lanzo from New Horizon Church led the invocation.

**3. PLEDGE OF ALLEGIANCE**

The Mayor invited some children from ( ) to assist with leading the pledge of allegiance.

**4. Ordinance No. 24-2085 First Public Hearing – Fiscal Year 2024-2025 Proposed Millage Rate Adoption**

Omar DeJesus, Finance Director, CPA reviewed the proposed millage rate adoption. Discussion took place. For the First Public Hearing, Mayor Arroyo read a statement that is required by Florida Law. City Manager Elensky stated the Fiscal Year 2024-2025 tentative budget of \$134,827,785.00. The millage rate needed to fund the budget is 7.5985 mills. Mayor asked if there were any comments from the dais. There were no comments. At this time a public hearing was open. No one came forward and the public hearing was closed. Commissioner Smith introduced Ordinance No. 24-2085. Attorney Reilly read the Ordinance into the record.

**Moved by** Vernel Smith

**Seconded by** Morris West

Staff recommends adoption on first reading of this ordinance adopting the millage rate to provide sufficient funds for projected expenditures of the 2024-2025 Fiscal Year Budget of the City of Haines City.

**Carried Unanimously**

**5. Ordinance No. 24-2086 First Public Hearing for Adopting the Budget for Fiscal Year 2024-2025**

Omar DeJesus, Finance Director, CPA gave an overview of the first public hearing for adopting the budget for fiscal year 2024-2025. The proposed budget for FY 2024-2025 is \$134,827,785.00. There were no questions from the dais. At this time Mayor Arroyo opened up the public hearing. No one came forward and the public hearing was closed

Vice-Mayor/Commissioner West introduced Ordinance No. 24-2086. Attorney Reilly read the ordinance into the record.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends adoption of the Fiscal Year 2024-2025 budget of the City of Haines City, Florida.

**Carried Unanimously**

## **6. PRESENTATIONS AND PROCLAMATIONS**

City Clerk Lauther, stated that item 6b and 6c did not have anyone to accept recognition therefore the items were pulled from the Agenda.

### **6.a Mexican Independence Day Proclamation**

City Clerk Lauther read the proclamation into the record. Mirella Pineda from La Fiesta Mexicana Restaurant accepted the proclamation.

### **6.b Recognition of the Northeast Rattlers Football 6U Team**

Parks and Recreation Director, Terrell Griffin acknowledged the Northeast Rattlers Football 6U Team and all of their accomplishments.

Enter your Recommendation here

### **6.c Recognition of the OTH Basketball Program**

Parks and Recreation Director, Terrell Griffin acknowledged the OTH Basketball Program and all of their accomplishments.

Enter your Recommendation here

## **7. CONSENT AGENDA**

No comments from the dais.

**Moved by** Morris West

**Seconded by** Kim Downing

Approve consent as a whole.

**Carried Unanimously**

- 7.a City Attorney Invoice for the Billing Period Ending July 31, 2024 and Annex Loan Processing Invoice

Approve payment to the City Attorney for legal services and disbursements for the billing period ending July 31, 2024 in the amount of \$20,136.80, and the Annex loan processing invoice in the amount of \$10,000, for a total of \$30,136.80.

- 7.b Meeting Minutes to be approved

7.b.1 City Commission Meeting Minutes- 08.12.2024

- 7.c Cemetery Deeds

- 7.d Agreement for Auditing Services – Mauldin & Jenkins, LLC

Approve extension of the agreement for auditing services with Mauldin & Jenkins, LLC for Fiscal Year ending September 30, 2024.

- 7.e Ferguson Waterworks Piggyback Agreement for Plumbing Supplies

Staff recommends the City Commission approve the piggyback agreement, with Ferguson Waterworks, for plumbing supplies.

## **8. OLD BUSINESS**

- 8.a Ordinance No. 24-2084– Minor Modification to the RPUD of Cedar Crossing – Second Reading

April Brown, Planning Manager stated that there were no changes to the Minor Modification to the RPUD of Cedar Crossing for second reading. Mayor Arroyo opened up the public hearing. No one came forward and the public hearing was closed. Vice-Mayor/Commissioner West introduced Ordinance No. 24-2084 for second reading. Attorney Reilly read the ordinance into the record.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends approval of Ordinance No. 24-2084 a minor modification to the RPUD of Cedar Crossing on second reading as follows:

1. Enlarge 43 lots adjacent to Robinson Drive from 60' wide to 62' wide.

**Carried Unanimously**

8.b Resolution No. 24-1813 Brownfield Area and Brownfield Site Rehabilitation Agreement – Second Reading

Fred Reilly, City Attorney stated that there were no changes to the Brownfield Area and Brownfield Site Rehabilitation Agreement for second reading. Mayor Arroyo opened up the public hearing. No one came forward and the public hearing was closed. Commissioner Smith introduced Ordinance No. 24-1813 for second reading. Attorney Reilly read the ordinance into the record.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends that the City Commission designate a Brownfield Area for 0 North 4<sup>th</sup> Street, Haines City, FL, and approve the Brownfield Site Rehabilitation Agreement pursuant to Section 376.80(5), Florida Statutes (a copy of which is attached) (hereinafter referred to as the “Brownfield Site Rehabilitation Agreement”) on second reading.

**Carried Unanimously**

9. **NEW BUSINESS**

9.a Ordinance No. 24-2088 Amending the City of Haines City General Employees’ Retirement Plan and Police Officers’ Retirement Trust Fund

Omar DeJesus, CPA Finance Director gave an overview of the amendment to the Haines City General Employees’ Retirement Plan and the Police officers’ Retirement Trust Fund. Discussion took place. Mayor Arroyo opened the public hearing. No one came forward and the public hearing was closed. Commissioner Downing introduced Ordinance 24-2088. Attorney Reilly read the ordinance into the record.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends the approval of the Ordinance amending the Haines City General Employees’ Retirement Plan and the Police Officer’s Retirement Trust Fund.

**Carried Unanimously**

9.b Resolution No. 24-1824 Real Property Donation North East Polk County Historical Society, Inc.

Fred Reilly, City Attorney gave an overview of the real property donation. Commissioner Huffman inquired about the length of time it would take to get the building to a point that the building will be in use by the North East Polk County Historical Society. Attorney Reilly stated that the transition will take time to do a donation agreement and then a closing. Commissioner Huffman wants to make sure that the City history is preserved. Deputy City Manager Sloan stated that remediation has already been conducted. As soon as the City is in ownership City staff will assess how much work is needed and get done to bring it up to use. Vice-Mayor/Commissioner West stated that downtown is a great location to place them for future, however there is concern that there is down time. Maybe the library conference room would be an alternate plan. At this time, Ms. Bradiver, President of the Historical Society stated they will continue to operate under the City. Thanks was given to Finance Director, Omar Arroyo, City Attorney Reilly, CRA Manager, Jane Murphy for all of the time spent in assisting during this transition. Mayor Arroyo opened up the public hearing. Ken Kipp, stated that it is important to preserve the history of the City. Vice-Mayor/Commissioner West introduced Resolution No. 24-1824. Attorney Reilly read the resolution into the record.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends the City Commission approve the Real Property Donation Agreement with the North East Polk County Historical Society, Inc. for the real property located at 1001 Ingraham Avenue East.

**Carried Unanimously**

9.c Resolution No. 24-1823 Second Amendment to Purchase and Sale Agreement with Feltrim Development N.A., Inc.

Fred Reilly, City Attorney gave an overview of the second amendment to the purchase and sale agreement with Feltrim Development, N.A. There were no questions from the dais. Mayor Arroyo opened up the public hearing. No one came forward and the public hearing was closed. Commissioner Smith introduced Resolution No. 24-1823. Attorney Reilly read the resolution into the record.

**Moved by** Vernel Smith

**Seconded by** Morris West

Staff recommends the City Commission approve the Second Amendment to the Real Estate Purchase and Sale Agreement between the City of Haines City and Feltrim Development N.A., Inc.

**Carried Unanimously**

9.d Lakeland Area Mass Transit District Contract Renewal 2024-2026

Finance Director, Omar DeJesus explained the details of the renewal. There were no questions from the dais regarding the contract renewal for Lakeland Area Mass Transit District Contract Renewal for 2024-2026. Mayor opened up the public hearing. No one came forward and the public hearing was closed.

**Moved by** Morris West

**Seconded by** Kim Downing

Staff recommends approval of the service agreement with Lakeland Area Mass Transit District for the period of October 1, 2024 to September 30, 2026.

**Carried Unanimously**

9.e Memorandum of Understanding between the City of Haines City and the International Association of Fire Fighters, Local 4867

There were no questions from the dais. Mayor Arroyo opened the public hearing. No one came forward and the public hearing was closed.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends approval of the MOU between the City of Haines City and the International Association of Fire Fighters, Local 4867.

**Carried Unanimously**

9.f Collective Bargaining Agreement between IAFF Local 4867 and the City of Haines City

Fire Chief Neubrand stated the current collective bargaining agreement expires 09.30.2024. Commissioner Huffman asked if the Chief is nonunion. The Fire Chief and the Battalion Chief are the two employees that are non-union. Mayor Arroyo

opened the public hearing. No one came forward and the public hearing was closed.

**Moved by** Morris West

**Seconded by** Vernel Smith

Staff recommends approval of the presented CBA between the IAFF Local 4867 and the City of Haines City, beginning October 1, 2024 and ending September 30, 2027.

**Carried Unanimously**

9.g Tenth Amendment to Attorney-Client Agreement

Attorney Reilly stated that this agreement has a provision for a severance provision. The severance amount would be 20 weeks of compensation if the City Commission suddenly terminates his employment. Resignation, retirement or death would not result in a severance package. Vice-Mayor/Commissioner West thanked the Reilly family for all of the legal work that he has done for the City. Commissioner Huffman stated that this is long overdue. Commissioner Huffman would like to see a severance package to be given to the charter officers with or without cause in the near future. Mayor Arroyo opened the public hearing. No one came forward and the public hearing was closed.

**Moved by** Kim Downing

**Seconded by** Vernel Smith

Staff recommends approval of a Tenth Amendment to the Attorney-Client Agreement between the City of Haines City, and Reilly International Law Firm, P.A. for an additional one (1) year extension, and a provision related to a severance payment. Upon approval, this will extend the terms and conditions of the initial agreement until September 30, 2025.

**Carried Unanimously**

**10. PUBLIC COMMENTS - REGARDING ITEMS NOT ON THE AGENDA (3 Minutes)**

**Nell Johnson** thanked the Commission for honoring Barbara Costella, the first female Commissioner and the first female Mayor of Haines City



**Joy Sims** stated she has lived in Haines City for fifty-four years. Thanks was given to the entire Commission and staff for all they do for the City.

**11. CITY MANAGER'S REPORT**

City Manager Elensky stated a speed study has been done on Old Polk City Road. The data unfortunately does not warrant lowering the speed limit at this time. A speed study was also conducted on 10th Street. City Manager Elensky wants Chief Goreck to determine the needs of this area. City Manager Elensky would like the Commission to direct their concerns the two Deputy City Managers, Richard Sloan and Loyd Stewart. City Manager Elensky feels that this would be the most efficient and expedient way to address concerns. Vice-Mayor/Commissioner West would like to see a memo of understanding so there isn't a jeopardy of violating the charter. Discussion with the attorney has been discussed. Commissioner Huffman states that this new protocol needs to be followed by all of the Commissioners. Commissioner Smith states that this is long overdue and is in agreement. Commissioner Downing concurs that open line of Communication with the Deputy City Managers and the Public Services Administrator, James Keene for necessary water and/or garbage items. Mayor Arroyo agrees that this will be more efficient. At this time, City Manager Elensky invited Code Compliance Supervisor, Steve Shifley to address the Commission. Commissioner Downing inquired about the process of notifying the residents of liens and how they are assessed. Discussion took place. Vice-Mayor/Commissioner West stated that the residents needed to be educated with Town Hall meetings in the near future. Commissioner Downing states that the Community knows that signs are picked up on Mondays and people wait until after Monday to litter the city. Mayor Arroyo stated the electronic sign on 6th Street needs to be updated

**12. CITY CLERK'S REPORT**

City Clerk Lauther discussed the training needed to for the voting component in E-scribe. Discussion took place for when training could be done.

**13. CITY ATTORNEY'S REPORT**

Use of the City Seal and City Commissioner Sponsored events. There is not a policy in place. Attorney Reilly states that a policy needs to be put in place. The CRA Meeting has also never established a policy on citizen comments. The citizen comments are for items that are not on the Agenda. Attorney Reilly stated that the Charter requires that we follow the City Manager form of government. Direction is given to the City Manager and the City Manager runs the day-to-day operations.

**Vice-Mayor/Commissioner West** -appreciates the work that the attorney does to make sure the Commissioners are conducting themselves ethically.

**Commissioner Huffman-** states that she feels that the Mayor interrupts the two female Commissioners more than the others.

**Mayor Arroyo-**states that he will not allow Commissioner Huffman to disrespect his role as the Mayor in the meeting

**Commissioner Smith-** states that the Commission needs to put our personal opinions aside and keep the needs of the city at the forefront. The opinions of each other will differ.

**Commissioner Downing-** appreciates Attorney Reilly addressing the entire panel as a whole, however this is the type of chaos that is created when it does not always apply to everyone. Commissioner Downing states that leadership is for everyone, and she lives by this motto day to day for the residents. Mutual respect must be given. Commissioner Downing states that she does servant leadership for the city.

13.a City Attorney Reilly Report for September 5, 2024

#### 14. **COMMISSION COMMENTS**

**Vice-Mayor/Commissioner West** -addressed the parking issues for the Commissioners and CRA Board on Commission meeting days.

**Commissioner Huffman-** Commissioner Huffman advised everyone of a CRA conference in Tampa sometime in October.

**Mayor Arroyo-** Agreed with Commissioner Downing that they work for the people. Mayor Arroyo advised the Commission of travel to Mexico to participate in an international forum representing the city. Mayor Arroyo states that he will use his personal funds. Commissioner Huffman states that if he is representing the city funding should come from the city. Vice-Mayor West looks forward to what the Mayor could bring back to the city. October 2-4, 2024

**Commissioner Smith-** no further comments

**Commissioner Downing-** no further comments

#### 15. **ADJOURNMENT**

Without any further business the meeting was adjourned at 9:40 PM.

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Omar Arroyo, Mayor

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Sharon Lauther, MMC, City Clerk